

a term which may extend to three years, or with fine which may extend to five lakh rupees, or with both.”

This means that if there is a disclosure of information, the person and the intermediary involved in exchange of information, containing personal details about the other person, without the owner’s consent or in breach of a contract, in a way that it wrongful loss to the owner of the information, would be liable to be subject to being punished with a prison term, which may be as long as 3 years or a monetary fine, which may be up to 5 lakh rupees or both.



Exceptions in the Act

The IT Act, while protecting the interests of the residents of India, also is subject to certain restrictions, meaning that if any of the listed restricted circumstances are found to have risen or come into effect, the provisions of the act would cease to apply.

The Act is applicable only when the beneficiaries’ action do not affect any of the following things: defence of India, sovereignty and integrity of India, security of the State institutions and machinery, friendly relations with foreign states, public order, for preventing incitement to the commission of any offence relating to the prior stated objects, and for investigation of any offence.